

		a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (<i>CRC 2.550(d)</i>; <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal. App. 4th 974, 988.) Uptown argues the confidentiality provision in the lease, as well as an undefined financial right of privacy, supports an order sealing the three leases attached to the Shopoff declaration and references thereto in the motion for summary judgment and separate statement. However, a proposed sealing must also be narrowly tailored to serve the overriding interest, such as by sealing only portions of pleadings or redacting particular text that refer to the confidential information. (<i>In re Marriage of Burkle</i> (2006) 135 Cal.App.4th 1045, 1052, 1070.) Based on the information provided, the court is unable to make the required express finding that the proposed sealing is narrowly tailored. For example, in the first paragraph of Exhibit 1 to Shopoff's declaration, the document states the date of the lease and the names of the parties to the lease. There is no explanation in the declaration submitted as to why the names of the parties to the lease should be under seal. Similarly, there is no explanation as to why the address of the property which is the subject of the lease should be sealed. Accordingly, the motion is DENIED. <i>Uptown is ordered to give notice of this ruling.</i>
5.	Thompson v. FCA US, LLC 24-1446312	Defendant FCA US, LLC's ("Defendant") unopposed motion for judgment on the pleadings as to plaintiff Taia Thompson's ("Plaintiff") Complaint is GRANTED. Defendant moves for judgment on the pleadings as to the fifth cause of action for Fraudulent Inducement – Concealment on the basis it is barred by the statute of limitations, and it fails to state sufficient facts to constitute a cause of action against Defendant. (<i>Civ. Proc. Code § 438(c)(B)(ii)</i>.) A) Fraud is Barred By Statute of Limitations The statute of limitations on a fraud cause of action is three years. (<i>Civ. Proc. Code § 338(d)</i>.) "When a plaintiff relies on a theory of fraudulent concealment, delayed accrual, equitable tolling, or estoppel to save a cause of action that otherwise appears on its face to be time-barred, he or she must specifically plead facts which, if proved, would support the theory." (<i>Mills v. Forestex Co.</i> (2003) 108 Cal.App.4th 625, 641.) "A plaintiff who fails to sufficiently plead such facts normally should be permitted to amend his or her complaint to do so." (<i>Ibid.</i>) On 05/29/20, Plaintiff entered into a warranty contract with FCA regarding the Vehicle. (Complaint ¶ 7.) This allegation implies Plaintiff

took possession, on that date. Plaintiff alleges Defendant was aware of the subject engine defects prior to the sale of the Vehicle, but Defendant concealed and failed to disclose the defect to Plaintiff at the time of purchase. (Complaint ¶¶ 20, 25, 63.) Plaintiff alleges the wrongful conduct was discovered "shortly before the filing of the complaint" without specifying a date or the manner of discovery. (Complaint ¶ 8.)

The implication from the above allegations is that the defects existed at the time of delivery. Because Plaintiff is presumed to have knowledge of the wrongful cause of their injury (*Grisham v. Philip Morris U.S.A., Inc.* (2007) 40 Cal. 4th 623, 638), the applicable statute of limitations began to accrue when Plaintiff received the vehicle with a defect that could not be conformed to warranty. As the instant action was not filed until 12/10/24, which was four years, six months, and 11 days after the purchase of the Vehicle, the claim appears barred on its face.

Plaintiff alleged no facts to support any type of tolling of the statute of limitations.

As the cause of action for fraudulent inducement is time barred on the face of the complaint, the Motion is **GRANTED**.

B) Plaintiff Fail to Plead Sufficient Facts

"The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact." (*Rattagan v. Uber Techs., Inc.* (2024) 17 Cal. 5th 1, 40 ("Rattagan").)

"A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment)." (*Id.*, at 40.) "Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as "between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. [Citation.] All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances."

[Citation.] "Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large." " (Id., 40-41.)

California also requires that fraud must be alleged with specificity. (*Rattagan, supra*, 17 Cal.5th at 43.) The requirement provides an important safeguard against the risk of tort recovery for fraud in every case involving conduct occurring during a contractual relationship. (*Id.*) "When affirmative misrepresentation fraud is alleged, "This particularity requirement necessitates pleading facts which 'show how, when, where, to whom, and by what means the representations were tendered.' " (*Id.*)

California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim. (*Rattagan, supra*, 17 Cal.5th at 43.) "The court must determine whether the plaintiff has alleged a sufficient factual basis for establishing a duty of disclosure on the part of the defendant independent of the parties' contract. If the duty allegedly arose by virtue of the parties' relationship and defendant's exclusive knowledge or access to certain facts, as *Rattagan* has alleged here, the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission. "[M]ere conclusionary allegations that the omissions were intentional and for the purpose of defrauding and deceiving plaintiff[] ... are insufficient for the foregoing purposes." " (*Id.*, at 43-44.)

Plaintiff alleged the Vehicle experienced engine defects, transmission defects, electrical defects, and others. (Complaint ¶ 12.) The Defect is a safety concern because it affects the driver's ability to control the Vehicle's speed, acceleration, and deceleration. (Complaint ¶ 17.) Plaintiff alleged Defendant was aware of issues through sources not available to Plaintiff, including pre- and post-production testing, consumer complaints, aggregate warranty data, testing, and warranty repair and part replacements. (Complaint ¶¶ 19, 61.) FCA had exclusive knowledge of the Defects. (Complaint ¶¶ 22-23.) Plaintiff interreacted with sales representatives and considered FCA's advertising and marketing materials prior to purchase. (Complaint ¶ 21.) Plaintiff states she would not have purchased the Vehicle or would have paid less for it had Plaintiff known of the Defects. (Complaint ¶¶ 24.)

Plaintiff did not state where the Vehicle was purchased from, whom Plaintiff spoke with, or the individual(s) authority to speak on behalf of Defendant prior to the purchase of the Vehicle. As such, Plaintiff has not alleged a buyer-seller relationship which might otherwise require a duty to disclose. Plaintiff also only vaguely stated Plaintiff relied upon

		advertisements and other marketing materials regarding the Vehicle which did not disclose the defects. Plaintiff has not alleged any fraudulent statements made or actions specifically on the part of Defendant or individuals working on behalf of Defendant to otherwise induce Plaintiff into purchasing the Vehicle. Plaintiff has not pled sufficient facts to support this cause of action. The Motion is GRANTED. Plaintiff is given leave to file an amended complaint within 15 days of written notice of the ruling. <i>Defendant to give notice.</i>
6.	Renevier v. Hyundai Motor America 25-1468057	Defendant Hyundai Motor America's ("Defendant") demurrer to plaintiff Angelina Renevier's ("Plaintiff") Complaint is SUSTAINED. Defendant demurs to the fifth cause of action for Fraudulent Inducement – Concealment on the basis it fails to state sufficient facts to constitute a cause of action against Defendant. (<i>Civ. Proc. Code § 430.10(e)</i>.) "The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact." (<i>Rattagan v. Uber Techs., Inc.</i> (2024) 17 Cal. 5th 1, 40 ("Rattagan").) "A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (<i>i.e.</i>, exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (<i>i.e.</i>, partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (<i>i.e.</i>, active concealment)." (<i>Id.</i>, at 40.) "Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as "between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. [Citation.] All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances." [Citation.] "Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large." " (<i>Id.</i>, 40-41.)